

24NNCV00951 24NNCV00951

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-07-31

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Case Number: 24NNCV00951 Hearing Date: July 31, 2026 Dept: D

TENTATIVE RULING

Calendar: 3

Date: July 31, 2026

Case No: 24NNCV00951 Trial Date: n/a

Case Name: Arabatlian v. BMW of North America, et al.

MOTION FOR ATTORNEYS' FEES

[CCP § 1794 subd. (d)]

Moving Party: Plaintiffs, Norik A. Arabatlian and Andranik A. Arabatlian

Responding Party: Defendant, BMW of North America, LLC

RELIEF REQUESTED:

Order awarding attorneys' fees in the amount of \$82,905.00, comprised of attorneys' fees of \$55,270.00, and a lodestar multiplier enhancement of \$27,635.00.

CAUSES OF ACTION: from Complaint

1) Breach of Express Warranty

2) Breach of Implied Warranty

3) Failure to Repair

4) Negligent Repair

SUMMARY OF FACTS:

Norik A. Arabatlian and Andranik A. Arabatlian ("Plaintiffs") allege that in December of 2020, they leased a new 2021 BMW 840I from Crevier BMW, which was leased to Plaintiffs with express warranties that the vehicle was free from defects in materials or workmanship during the applicable warranty period and to the extent the vehicle had defects, defendant BMW of North America, LLC ("BMW") would repair the defects. Plaintiffs also allege that the vehicle was leased to them with implied warranties that the vehicle would be of the same quality as similar vehicles sold in the trade, and that the vehicle would be fit for the ordinary purposes for which similar vehicles are used.

Plaintiffs allege that the vehicle was delivered with serious defects and nonconformities under the warranty and developed other defects and nonconformities, including engine defects. Plaintiffs allege that the defects and nonconformities to warranty manifested themselves within the applicable warranty periods. Plaintiffs allege that they delivered the vehicle to BMW and its authorized repair facilities for repair, but that BMW has been unable to conform the subject vehicle to the applicable express warranties after a reasonable number of attempts.

Plaintiffs allege that notwithstanding their entitlement, BMW has failed to either promptly replace or repurchase the vehicle in accordance with the Song-Beverly Act.

The Complaint also alleges that Plaintiffs delivered the vehicle to defendant Finchey Corporation of California dba Pacific BMW ("Pacific") for repair, and that Pacific failed to properly store, prepare and repair the vehicle in accordance with industry standards, in breach of its duty to Plaintiffs, and proximately causing Plaintiffs' damages.

ANALYSIS:

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (CCP, § 1032 subd. (b).) Attorney fees are allowed as costs when authorized by contract, statute or law. (CCP, § 1033.5, subd. (a)(10)(B).)

In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. Civil Code section 1794 states:

"If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

(Civil Code, § 1794, subd. (d).)

Entitlement to Attorneys' Fees

The parties here do not dispute that Plaintiffs are the prevailing parties pursuant to a December 4, 2025, Settlement Agreement which provides for an award of attorneys' fees, costs, and expenses to be determined by noticed motion. (Wirtz Decl., ¶ 32, Ex. 7.) Thus, Plaintiffs are the prevailing party in this action and are entitled to a reasonable amount of attorneys' fees.

Reasonableness of Fees

Plaintiffs seek an award of attorneys' fees and expenses in the total amount of \$82,905.00 consisting of: (1) \$55,270.00 in attorneys' fees; and (2) a 1.5 multiplier enhancement on the attorneys' fees [or \$27,635.00]. The motion seeks approximately 133.00 hours of time spent by attorneys at Wirtz Law APC at billing rates ranging from \$250.00 to \$750.00 per hour.

Hourly Rate

In determining a reasonable attorneys' fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

"The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group, supra, 22 Cal.4th at p. 1095 ["The experienced trial judge is the best judge of the value of professional services rendered in his court."].)

In connection with attorneys' fee awards under the Song-Beverly Act, "The statute "requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of 'showing that the fees incurred were "allowable," were "reasonably necessary to the conduct of the litigation," and were "reasonable in amount." ' ' (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470, quoting Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

In the opposition, BMW argues that the hourly rates sought are excessive. BMW argues that there was no reason for senior attorneys to undertake most of the work on this case, which could have been completed by junior attorneys at substantially lower rates. (Opp., pp. 3:12-14.) BMW requests that the Court reduce the partner rates to \$325.00 per hour, associate rates to \$225.00 per hour, and reduce the rates for post bar candidates and paralegals by a corresponding 61%. (Opp., pp. 5:6-6:1.)

The moving papers submit evidence justifying the billing rates claimed, describing the experience and expertise of each attorney who billed on this matter (Wirtz Decl., ¶¶ 5-23.) The rates requested conform with what this Court would expect to be charged in matters of this nature. The Court has reviewed all evidence submitted and is familiar with the customary billing rates in this county and in cases of this nature. Under the circumstances, the Court finds the billing rates reasonable, and the Court will not reduce the billing rates charged. The Court will however, take into account the high hourly rates charged and counsels' attested levels of expertise when assessing whether the total number of hours expended was reasonable.

Number of Hours

Plaintiffs' fee recovery is based on 133.00 hours of time spent litigating this case through the instant motion for which Plaintiff has submitted billing records. (Wirtz Decl., Ex. 1.) BMW objects to Plaintiffs requested hours on the grounds that several of

the billing entries are excessive and unreasonable. (Opp., pp. 6:5-9:9.)

"In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.)

First, BMW objects to 2.9 hours billed to draft the complaint. BMW argues that the complaint is largely templated and that it is unreasonable for an experienced lemon law attorney to spend nearly 3 hours drafting it. (Opp., pp. 6:21-7:8.) However, the billing records reflect that Plaintiffs' counsel billed 2.2 hours for drafting, reviewing and revising the complaint. The Court does not find that spending 2.2 hours to update, review and revise a templated complaint is unreasonable.

Accordingly, the Court declines to reduce the fees on this ground.

Second, BMW objects to 5.9 hours, totaling \$3,540.00, billed on May 1, 2025, for travel time to and from the vehicle inspection. BMW argues that the distance between Plaintiffs' counsel's office in La Jolla and the vehicle inspection in Ontario is 104 miles and that it is unreasonable that it took counsel 2.7 hours to drive to Ontario and 3.2 hours to return to San Diego. (Opp., p. 8:5-8.) "[A]ttorney's fees for travel hours may be awarded if the court determines they were reasonably incurred." (Roe v. Halbig (2018) 29 Cal.App.5th 286, 312.) The Court does not find it unreasonable for counsel to attend the vehicle inspection. Although the drive time suggests unusually heavy traffic, the Court cannot conclude that the amount of time billed was unreasonable, as heavy rush-hour traffic on the day of the inspection is not outside of the realm of ordinary experience.

Accordingly, the Court declines to reduce the fees on this ground.

Third, BMW objects to 2.6 hours, totaling \$755.00, billed for various administrative tasks. BMW points to several specific time entries for administrative work which it argues should have been completed by an assistant. (Opp., p. 8:13-27.) Purely clerical or secretarial tasks should not be billed at a lawyer or paralegal's usual rate, regardless of who performs them. (Missouri v. Jenkins (1989) 491 U.S. 274, 288, fn. 10.) Upon review, the Court finds that the 15 challenged time entries consist of administrative tasks that were improperly billed at attorney and paralegal rates. The Court therefore reduces the requested time by 2.6 hours.

Accordingly, the Court will reduce the fees by \$755.00.

Fourth, BMW objects to 8.4 hours, totaling \$3,900.00, to draft and attend the hearing on Plaintiffs' Motion to Compel the Deposition of Defendant's Person Most Knowledgeable. BMW argues that the time spent is unreasonable as this is a straightforward discovery motion which Plaintiffs' counsel has filed several times, and because the motion was ultimately denied. (Opp., p. 9:3-9.) In ruling on the motion, the Court found that Plaintiffs had failed to comply with the Court's Standing Order Re Discovery in Song-Beverly Litigation. (7/25/2025 Minute Order.) Accordingly, the Court denied the motion, as well as Plaintiffs' corresponding request for sanctions. (7/25/2025 Minute Order.) Because the Court has already declined to award attorneys' fees for the time spent on the motion, the Court reduces the requested time by 8.4 hours.

Accordingly, the Court will reduce the fees by \$3,900.00.

Having analyzed the motion and pleadings filed, and having reviewed the billing statements provided, the Court determines that a reasonable lodestar in this case is \$50,615.00, representing 122 hours.

Multiplier

While the lodestar reflects the basic fee for comparable legal services in the community, it may be adjusted based on various factors, including “(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award” and (4) the success achieved. (Serrano v. Priest (1977) 20 Cal.3d 25, 49.)

Nonetheless, the court must not consider extraordinary skill and the other Serrano factors to the extent these are already included with the lodestar. (Ketchum v. Moses (2001) 24 Cal. 4th 1122, 1138-1139.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (Id. at 1139.)

Plaintiffs request a lodestar multiplier enhancement of 1.5x to account for the contingent nature of this case. (Mot., pp. 8:9-9:18.) In the opposition, BMW requests that the Court adopt a negative multiplier (Opp., p. 9:11-10:15.)

The Court finds that under the circumstances of this case, a lodestar multiplier is not appropriate. There is no indication that counsel was prevented from taking on other clients by the representation. While counsel accepted the case on a contingency basis and Plaintiffs’ attorneys advanced all litigation costs and expenses, the Court finds that such consideration and risk is already included within the lodestar amount. That is because the substantial hourly rates allowed for by the Court are hourly rates for lemon law cases done on a contingency basis.

Based on the foregoing, the Court declines to award a lodestar multiplier.

RULING:

Plaintiffs Norik A. Arabatlian and Andranik A. Arabatlian’s Motion for Attorney Fees is GRANTED, IN PART.